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Draft BEREC report on the impact of generative AI on internet openness

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Context

- In the last years, BEREC published several deliverables on
  - AI and related topics
  - How users' internet experience is affected by the different elements of the internet ecosystem in terms of competition and internet openness

- While enriching user experience and complementing traditional methods of accessing online content and services, generative AI can also affect the overall user experience on the internet as it has the potential to directly influence the way users access online content/services and possibly their freedom of choice

- This report focuses on the impact of generative AI on internet openness, understood as the ability of users to access and distribute information, content and services online without unlawful interference or discrimination, and the ability to innovate

Key take-aways 1/2

- Generative AI is creating a new layer of intermediation within the internet ecosystem, and a new gateway through which users access information, products and services → this can generate significant efficiencies but also concentrate decision-making power within a limited number of private actors, and raise questions regarding transparency and users' freedom of choice

- The AI ecosystem is characterised by strong structural dependencies between model developers, infrastructure/cloud providers. Key infrastructure, distribution layers downstream applications and the AI agents sector are highly concentrated

- Technical protocols are likely to play an increasingly important role in shaping the future AI ecosystem although they present some limitations: Model Context Protocol (MCP), WebMCP, robots.txt are analysed

Key take-aways 2/2

- Generative AI changes the relationship between users and online content by generating synthesised answers rather than directing users to a range of sources
- As a result, AI-generated answers can reduce traffic to original websites and concentrate attention on a relatively small number of sources → This may limit source diversity, reduce transparency regarding how information is selected and prioritised, and increase users' reliance on AI-mediated representations of information
- Growing tension between generative AI and the sustainability of the production of online content → structural paradox: AI systems depend on the continued production of high-quality content while simultaneously weakening some of the economic incentives that support its creation and dissemination
- Regulatory frameworks: no single regulatory instrument can fully address the broader implications of generative AI for internet openness, but several EU frameworks can tackle some of the challenges → effective coordination and enforcement will be key

Public consultation

- The draft report will be opened to public consultation from 7 October until 11 November (5 weeks)

- Early 2027: publication of the final report and of the public consultation report